

26CHCV01008 26CHCV01008

County: los-angeles

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DEFENDANT MERCEDES-BENZ USA, LLC'S MOTION TO COMPEL
BINDING ARBITRATION AND TO STAY ACTION

Motion filed on April 13, 2026.

MOVING PARTY: Defendant Mercedes-Benz USA, LLC

RESPONDING PARTY: None.

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks an order compelling Plaintiff Salibi Makhsherdzhyan to arbitrate Plaintiff's claims and staying this action pending arbitration.

RULING: Granted.

BACKGROUND

On March 11, 2026, Plaintiff Salibi Makhsherdzhyan filed the Complaint against Defendant Mercedes-Benz USA, LLC, Mercedes-Benz of Valencia, and Does 1 through 50, asserting two Song-Beverly Consumer Warranty Act causes

of action for breach of express warranty and breach of implied warranty.
(Complaint.)

Defendant filed this motion on April 13, 2026, supported by the declaration of Sybil Leung and exhibits including the Consumer Lease Agreement and Complaint. (Leung Decl. ¶¶ 2-3, Exhs. 1-2.) No timely opposition was filed.

ANALYSIS

Existence of Arbitration Agreement

Code of Civil Procedure section 1281.2 requires the Court to order arbitration if it determines that an agreement to arbitrate the controversy exists, unless a statutory ground for denial is shown. A party seeking arbitration satisfies its initial burden by attaching the arbitration agreement or setting forth its terms verbatim. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; see also *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Here, Defendant has met its initial burden. The Lease Agreement identifies Plaintiff as lessee, Mercedes-Benz of Valencia as lessor, and the subject vehicle as a 2023 Mercedes-Benz EQS580 with VIN W1KCG4EB2PA038057. (Leung Decl., Exh. 1 at p. 1.) The Lease Agreement contains an arbitration provision stating that “[a]ny claim or dispute, whether in contract, tort or otherwise,” including disputes over “the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue,” involving “the vehicle distributor, including Mercedes-Benz USA LLC,” shall, at the election of Plaintiff, the lessor, or a third-party beneficiary, “be resolved by a neutral, binding arbitration and not by a court action.” (Id. at p. 4.) Plaintiff signed the Lease Agreement and acknowledged receipt and agreement to all terms, “INCLUDING THE IMPORTANT ARBITRATION DISCLOSURES ON PAGES 4 AND 5.” (Id. at p. 6.) Plaintiff filed no timely opposition and has not challenged the existence, authenticity, or validity of the agreement. Defendant has shown that an arbitration agreement exists.

Third-Party Beneficiary

A nonsignatory may enforce an arbitration provision where the contract shows the nonsignatory is an intended third-party beneficiary. The

relevant inquiry is whether the third party would in fact benefit from the contract, whether a motivating purpose of the contracting parties was to provide that benefit, and whether enforcement is consistent with the contract's objectives and the parties' reasonable expectations. (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 830.)

Here, the Lease Agreement expressly identifies "the vehicle distributor, including Mercedes-Benz USA LLC," as a "Third Party Beneficiary" and expressly permits a "Third Party Beneficiary" to elect arbitration. (Leung Decl., Exh. 1 at p. 4.) That language shows Defendant would benefit from the agreement, that conferring the arbitration right on Defendant was a motivating purpose of the provision, and that enforcement by Defendant is consistent with the parties' reasonable expectations.

Scope and Delegation

When an arbitration agreement clearly and unmistakably delegates questions of arbitrability to the arbitrator, those issues are for the arbitrator unless the delegation provision itself is successfully challenged. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892.)

Here, the arbitration provision expressly covers disputes over "the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue." (Leung Decl., Exh. 1 at p. 4.) Plaintiff has not opposed the motion and has not challenged the delegation provision. Any issue concerning the scope of the arbitration clause or the arbitrability of Plaintiff's Song-Beverly claims is therefore delegated to the arbitrator.

Stay

This action is stayed pending completion of arbitration.
(Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.)

CONCLUSION

Defendant Mercedes-Benz USA, LLC's motion to compel binding arbitration is GRANTED.

This action is STAYED pending completion of arbitration.